ARRANGEMENT OF SECTIONS

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], approved the following by-laws:—

Title

1. These by-laws may be cited as the City of Masvingo (Wells and Boreholes) By-laws, 2025.

Application

2. These by-laws shall apply in relation to both wells and boreholes from which the Council provides public water supplies and all private wells and boreholes drilled in council area.

Interpretation

3. In these by-laws—

"borehole" means a narrow hole made in the ground by drilling to locate underground water;

"Council" means City of Masvingo;

"domestic purposes" excludes the watering of stock;

"officer" means the officer of the council appointed or assigned by the council;

"livestock" means domestic animals regarded as an asset such as goats, sheep, pigs, cattle and donkeys;

"well" means any excavation or structure created in the ground by digging or drilling to access water.

Drilling of wells and boreholes in Council area

4. (1) Any person who wants to dig a well or drill a borehole within the Council area should do so through application to council and issued a permit to do so, upon payment of the prescribed fee.

(2) All applications to drill wells or boreholes shall be accompanied by written approval from the relevant Catchment Council and Zimbabwe National Water Authority.

(3) No drilling company shall be allowed to drill boreholes and wells in council area without a council permit.

(4) Any person who digs a well or drill borehole without council approval shall be liable to a penalty specified in the Second Schedule.

(5) Drilling of boreholes shall be done from 8.00 a.m. to 5.00 p.m. Any person who wishes to drill outside the prescribed hours shall apply to Council for permission.

Siting of wells and boreholes

5. No person shall site any private well or borehole without the approval of council to make sure that—

(a) no well or borehole shall be located on the down slope of any ablution facility;

(b) no well shall be used without a proper lid;

(c) only a steel wire rope should be used to draw water from a well.

Upgrading of public wells and boreholes

6. (1) No person shall upgrade or cause to upgrade a public well or borehole without Council approval.

(2) No person shall be allowed to upgrade a public well or borehole for personal benefit.

(3) For all upgrading which result in a reticulated water system, public taps must be installed at the most convenient places across communities.

(4) Council shall be responsible for all major repairs of the borehole or wells save for the general maintenance and repair of the reticulated systems lines.

Uses of water from public wells and boreholes

7. (1) Subject to the provisions of this by-law, no person shall water any livestock at any public wells and boreholes unless there is approval from Council—

(a) well and borehole water to be used for all other domestic purposes other than watering livestock;

(b) washing of clothes, vehicles and utensils or bathing at the well and borehole is prohibited;

(c) use of public well and boreholes for irrigation without Council approval is prohibited.

(2) Any person who contravenes subsections (a), (b) and (c) above shall be liable to a fine specified in the Second Schedule.

Maintenance of public wells and boreholes

8. (1) Upon the drilling of a public well or borehole its maintenance is the responsibility of the local authority, and therefore the following should apply—

(a) each well or borehole to have a working water point committee, appointed and registered with council;

(b) Council shall be responsible for the routine maintenance of all public wells and boreholes;

(c) no person shall be allowed to repair public wells or boreholes unless authorised by council;

(d) no rehabilitated well or borehole shall be used before they are commissioned by Council after which the water samples will have been taken for testing to ascertain water quality and safeguard people from probable contamination.

(2) Any person who contravenes subsections (b) and (d) shall be liable to a fine specified in the Second Schedule.

Security of public wells and boreholes

9. (1) Council shall be responsible for the security of the well and borehole.

(2) Any person who vandalises a public well or borehole shall be guilty of an offence and liable to a fine specified in the Second Schedule.

Offences and penalties

10. Any person contravening the provisions of these by-laws shall be liable to a fine specified in the Second Schedule.

First Schedule

FEES

Description	*Section*	*Amount* (USD)
Application for borehole permit: Individual or company	4	10,00
: Contractor	4	10,00
Borehole Drilling Permit	4	350,00
Drilling time extension	4	30,00

SECOND SCHEDULE

PENALTIES

Description	*Section*	*Amount* (USD)
Drill a borehole or construct a weir without Council approval	4	2 000,00
Dig a well without Council approval	4	50,00
Contractor drilling without a permit	4	2 000,00
Drill borehole outside authorised time	4	200,00
Siting borehole at an unauthorised place	5	1 000,00
Siting well at unauthorised place	5	50,00
Sell water from a community borehole	7	50,00
Unauthorised repair of community borehole	8	50,00
Vandalise Community borehole	9	50,00
Obstruction of authorised official	10	100,00

The fees and penalties are payable in local currency at the prevailing interbank rate.